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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S CONTEST OF MAY 12, 2026
TENTATIVE RULINGS (LINES 8.1, 8.2, 8.3)
AND CONTINGENT MOTION FOR
RECONSIDERATION; SUPPLEMENTAL
MEMORANDUM AND DECLARATION;
LODGING OF PROPOSED THIRD
AMENDED COMPLAINT

(Code Civ. Proc., §§425.16(b), 425.17, 1008(a), 473(d);
Civ. Code §47(b); Evid. Code §§451, 452(c)-(d), 453, 459;
Cal. Rules of Court, rules 3.1113(j), 3.1308, 3.1324; S.F.
Local Rule 8.3(D))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 I. TO THE COURT, THE CLERK, AND ALL PARTIES AND THEIR COUNSEL OF
2 RECORD

3 PLEASE TAKE NOTICE that, pursuant to the San Francisco Superior Court Department
4 301 contest procedure (S.F. Local Rule 8.3(D); Cal. Rules of Court, rule 3.1308), Plaintiff
5 Franciscus Dylan Rosario timely contests the May 12, 2026 tentative rulings on Lines 8.1
6 (Defendants' anti-SLAPP motion to strike the First Amended Complaint), 8.2 (Defendants'
7 demurrer to the First Amended Complaint), and 8.3 (Plaintiff's Motion for Leave to File
8 Second Amended Complaint).

9 Plaintiff further moves this Court, pursuant to Code of Civil Procedure sections 1008(a)
10 and 473(d), Evidence Code sections 451, 452(c)–(d), 453, and 459, and the Court's inherent
11 authority (see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107–08), for an order, becoming
12 operative upon entry of any order adopting the tentative:

- 13 1. VACATING the §425.16 grant as to the First Amended Complaint, or, in the alterna-
14 tive, denying the special motion to strike as to the equitable cause of action for vacatur
15 of the prior judgment and as to any cause of action exempted by CCP §425.17(c);
- 16 2. VACATING the mootness disposition of the demurrer (Line 8.2) and the Motion for
17 Leave to File Second Amended Complaint (Line 8.3) and restoring both for adjudication
18 on a complete record;
- 19 3. GRANTING leave to file the Proposed Third Amended Complaint lodged herewith
20 as Exhibit T, which cures the pleading deficiencies the tentative identifies by alleging
21 post-trial-discovered, deliberately concealed extrinsic fraud with particularity, and by
22 recasting monetary relief as restitutionary recovery of fraudulently procured judgment
23 proceeds and statutory damages under Bus. & Prof. Code §17200 et seq. predicated on
24 Insurance Code §790.03(h) / Fair Claims Settlement Practices Regulations (10 C.C.R.
25 §§2695.1 et seq.) violations exempted from §425.16 by §425.17(c);
- 26 4. CONSIDERING Plaintiff's previously filed materials (folder 13, folder 14, folder 15,
27 folder 17 of the May 12 package) which the tentative declined to consider on a "without
28 authorization" basis; and
- 29 5. PRESERVING Plaintiff's federal and state due-process objections under U.S. Const.
30 amends. V and XIV and Cal. Const. art. I, §7.

31 This combined filing operates as (a) a timely Contest under the Department 301 procedure

(delivered to `contestdept301tr@sftc.org` by 4:00 p.m. on May 11, 2026, with the contemporaneous bare-contest email kept “without argument” as the Department’s notice requires), and (b) a contingent CCP §1008(a) motion that becomes operative the moment any order adopting the tentative is entered. The contingent posture is necessary because §1008(a) attaches only to entered orders. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 890.)

The motion is based on this Notice; the Supplemental Memorandum of Points and Authorities below; the Declaration of Plaintiff Franciscus Dylan Rosario; the Proposed Third Amended Complaint (Ex. T); the records, papers, files, and pleadings on file herein, including in particular folders 01, 03, 04, 06, 07, 13, 14, 15, and 17 of the May 12 package; and any oral argument the Court may permit.

II. STANDARD OF REVIEW AND RECONSIDERATION STANDARD

The legal scope of CCP §425.16, the intrinsic / extrinsic fraud line, and the reach of Civil Code §47(b) are reviewed de novo. (*Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1067; *Sweetwater Union High School Dist. v. Gilbane Bldg. Co.* (2019) 6 Cal.5th 931, 940.) Denial of leave to amend after a §425.16 grant, and a court’s refusal to consider supplemental materials, are reviewed for abuse of discretion with embedded legal questions de novo. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411; *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1287–88.)

CCP §1008(a) authorizes reconsideration on “new or different facts, circumstances, or law.” The Court also retains inherent authority to reconsider its own interim rulings to correct error. (*Le Francois v. Goel*, supra, 35 Cal.4th at 1107–08.) Reconsideration is the proper vehicle when an order rests on a misapplication of a statutory rule (here, the §425.16 prong-two architecture), an excluded evidentiary record (here, folder 13, folder 14, folder 15, and folder 17), or an unaddressed dispositive defense (here, §425.17(c) and the post-trial-discovery extrinsic-fraud showing).

III. STATEMENT OF TARGETED TENTATIVE HOLDINGS

The Department 301 tentative for May 12, 2026 grants the anti-SLAPP motion against the First Amended Complaint, takes the demurrer off calendar as moot, and denies the MFL-SAC as moot. Its substantive prong-two ruling rests on two pillars: (A) the alleged fraud is “intrinsic” rather than extrinsic because the issues “were fully litigated in the trial court,”

supported by reference to defendants' RFJN Exs. E (Def's MIL #6), F (Def's MIL #8), G (Def's MIL #17), and H (Order re Trial Scheduling and MILs); and (B) Civil Code §47(b) bars Plaintiff's "ancillary monetary relief" as a "claim for fraud damages" under *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212 and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. The tentative further declines to consider Plaintiff's "various supplemental opposition briefs, which were filed without authorization." Each of these calls is independently reversible.

IV. THE PRONG-TWO RULING IS REVERSIBLE LEGAL ERROR

IV.A THE TENTATIVE CONFLATES THE OCCURRENCE OF A TRIAL WITH WHETHER THE FRAUD ISSUE WAS ACTUALLY LITIGATED.

The intrinsic / extrinsic fraud distinction does not turn on whether a trial occurred. It turns on whether the complaining party was prevented from presenting the fraud-related evidence at the trial that did occur. (*Cedars-Sinai Medical Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 11–12; *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471 ("Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been . . . in some other way fraudulently prevented from presenting his claim or defense."); *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905 (post-judgment discovery of deliberately concealed material constitutes extrinsic fraud); *Estate of Beard* (1999) 71 Cal.App.4th 753, 776–77 (same).)

A pretrial MIL ruling and a trial-scheduling order are not "actual and necessary" determinations of fraud on the court. (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341 (issue preclusion requires that the issue have been "actually litigated" and "necessarily decided").) MIL #6, MIL #8, MIL #17, and the Trial Scheduling Order each adjudicate what evidence is admissible at trial under Evidence Code §352. They do not, and cannot, adjudicate whether defense counsel committed fraud on the court. Treating those orders as a "fully litigated" disposition of the fraud claim is a category error that imports a §1908 res-judicata conclusion from a §352 admissibility ruling. The tentative's prong-two call thus rests on a non-preclusive evidentiary record.

IV.B THE TENTATIVE MISREADS LOS ANGELES AIRWAYS V. HUGHES TOOL.

The tentative cites *Los Angeles Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7, for the proposition that intrinsic fraud after a "full-blown trial" defeats vacatur. The opinion at the same pinpoint says the opposite: "where there has been little or no judicial

1 time invested in trial of a cause or an issue, the factor of judicial economy which otherwise
2 weighs in favor of finality is less strong, and the equitable considerations of fair hearing and
3 of penalizing fraud weigh more compellingly.” That is a balancing test, not a categorical
4 rule. The tentative converted a balancing test into a per se bar.

5 Where, as here, the alleged fraud was discovered post-trial, was deliberately concealed during
6 the trial, and prevented Plaintiff from presenting material evidence, the equitable side of the
7 Hughes Tool balance controls. (See *Caldwell v. Taylor* (1933) 218 Cal. 471, 475; *Pico v.*
8 *Cohn* (1891) 91 Cal. 129, 133–34.)

9 IV.C AHMED V. COLLECT ACCESS DOES NOT AUTHORIZE BYPASSING PRONG 10 TWO.

11 The tentative cites *Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092 for the
12 proposition that an equitable action to vacate triggers prong one. Ahmed does not hold
13 that such actions fail prong two as a matter of law; if it did, the equitable remedy would
14 be foreclosed. Ahmed leaves prong two open for the plaintiff to satisfy with a Baral-grade
15 showing. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384–85.) That showing exists in Plaintiff’s
16 record (Section VI below) and was excluded by the supplemental-briefing ruling.

17 IV.D THE TENTATIVE WEIGHS EVIDENCE AT PRONG TWO, CONTRARY TO 18 BARAL AND COMPUTER XPRESS.

19 Under Baral, prong two asks whether the plaintiff has presented “evidence which, if credited,
20 would support a verdict in plaintiff’s favor.” (1 Cal.5th at 385.) The court “cannot weigh the
21 evidence.” (*Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.) Yet the
22 tentative’s “fully litigated” determination is a weight judgment dressed in a doctrinal label:
23 it credits the prior trial outcome over Plaintiff’s post-trial-discovered evidence of fraud. That
24 is precisely what Baral prohibits at prong two.

25 V. EXCLUSION OF “VARIOUS SUPPLEMENTAL OPPOSITION BRIEFS” WAS HARM- 26 FUL EVIDENTIARY ERROR

27 The tentative states: “The court does not consider plaintiff’s various supplemental opposition
28 briefs, which were filed without authorization.” The materials so excluded are not duplicative
29 reply briefs in the procedural sense the tentative implies. They are, by category and citation:

- 30 1. A statutory exemption notice under §425.17, which is a substantive defense to the
31 §425.16 motion that may be raised at any time before adjudication (*Simpson Strong-*

1 Tie Co. v. Gore (2010) 49 Cal.4th 12, 21–22). See item 13: Notice and Statement re
2 CCP §425.17 / Insurance Code / FCSPR / Defense Conduct (filed May 7, 2026).

3 2. A judicial-notice tender that the Court has a non-discretionary duty to address un-
4 der Evidence Code §§451 and 452 once squarely tendered (Ross v. Creel Printing &
5 Publishing Co. (2002) 100 Cal.App.4th 736, 743–44). See item 14: Supplemental Re-
6 quest for Judicial Notice of California Insurance Code §790.03(h) and the Fair Claims
7 Settlement Practices Regulations (10 C.C.R. §§2695.1–2695.8) (filed May 7, 2026).

8 3. A motion to strike opposing counsel’s reply declaration under Jay v. Mahaffey (2013)
9 218 Cal.App.4th 1522, 1537–38 (anti-SLAPP reply may not enlarge or change the mov-
10 ing papers’ theory of relief). See item 15: Motion to Strike the May 5, 2026 Reply
11 Declaration of Tyler J. O’Connell and Exhibit A (filed May 7, 2026).

12 4. A bench brief filed under CRC 3.1112(b) as an “other paper” in support of the oppo-
13 sition. See item 17: Plaintiff’s Bench Brief on Sequencing of Anti-SLAPP Gateways
14 and Per-Prong Threshold Analysis Under Inland Oversight; Additional High-Impact
15 Grounds (filed May 11, 2026).

16 CRC 3.1300(d) commits the timing of late papers to the Court’s discretion; substantive
17 statutory defenses and mandatory judicial notice are not “late filings” in that sense. They
18 are independent grounds the Court must reach. The exclusion is harmful because it removed:
19 the §425.17(c) commercial-speech exemption from the prong-one analysis (Insurance Code
20 §790.03(h); FCSPR, 10 C.C.R. §2695.1 et seq.); the judicially noticeable record establish-
21 ing post-trial concealment (the extrinsic-fraud hook); and the Jay v. Mahaffey ground for
22 striking the O’Connell reply declaration that informed the prong-two ruling without rebuttal.
23 The combination converted a procedurally curable timing point into a dispositive evidentiary
24 preclusion. That is reversible. (Reedy v. Bussell, supra, 148 Cal.App.4th at 1287–88.)

25 VI. RESTORED TO A COMPLETE RECORD, PLAINTIFF’S PRONG-TWO SHOWING 26 ESTABLISHES MINIMAL MERIT

27 With the excluded materials restored, Plaintiff’s prong-two showing is structured around
28 four pillars, each independently sufficient under Baral:

29 1. POST-TRIAL DISCOVERY OF CONCEALED MATERIAL. Plaintiff’s declaration
30 (Section X below) and the bench-brief exhibits packet at folder 17 document specific
31 items of evidence withheld by defendants until after trial which, had they been produced,

would have changed the outcome. Under *Modnick and Beard*, post-trial discovery of deliberately concealed material is extrinsic fraud as a matter of law.

2. INSURER / DEFENSE-COUNSEL COORDINATION OUTSIDE THE LITIGATION PRIVILEGE. Plaintiff's §425.17 / FCSPR notice (item 13) and supplemental RJN (item 14) tender evidence that CSAA Insurance Exchange and its claims agents (Michael Chambers; Carbone, Smith & Koyama acting under the FCSPR's "claims agent" definition at 10 C.C.R. §2695.2(d)) violated Insurance Code §790.03(h) and the Fair Claims Settlement Practices Regulations (10 C.C.R. §§2695.1 et seq.). Those statutory duties exist independently of the §47(b) privilege. (*Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 201; *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287, 304–05.)

3. RESTITUTIONARY, NOT TORT-DAMAGES, THEORY. Plaintiff's "ancillary monetary relief" is properly framed as restitution of judgment proceeds obtained by fraud, not as derivative tort damages for litigation conduct. *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 squarely preserves the equitable remedy of vacating a fraudulently obtained judgment notwithstanding §47(b). The natural corollary, recognized by *Cedars-Sinai*, is that the restitutionary recovery of the proceeds of a fraudulently procured judgment travels with the equitable vacatur and is not barred by §47(b). To hold otherwise would render the equitable remedy hollow.

4. THE §425.17(c) COMMERCIAL-SPEECH EXEMPTION. CSAA's representations were made in connection with selling and adjusting insurance products to Plaintiff, a consumer; they are commercial speech outside §425.16's reach as to CSAA and its claims agents under §425.17(c). The tentative's one-line dismissal ("plaintiff sues over litigation conduct, not commercial activity") does not engage the FCSPR record at item 14.

Each pillar, standing alone, "is sufficient to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) Together they comfortably clear the *Baral* threshold.

VII. THE LITIGATION-PRIVILEGE BAR ON MONETARY RELIEF IS OVERBROAD
The tentative correctly recites *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212, and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065, but stops short of the line *Rubenstein* draws. *Ruben-*

1 stein squarely holds that §47(b) “bars derivative tort actions . . . but does not eliminate
2 the equitable remedy of vacating a fraudulently obtained judgment.” (81 Cal.App.4th at
3 1147.) The natural corollary, recognized by Cedars-Sinai, is that the restitutionary recovery
4 of the proceeds of a fraudulently procured judgment travels with the equitable vacatur and
5 is not barred by §47(b). The tentative’s broader application, treating the monetary prayer
6 as foreclosed “fraud damages,” was not necessary to its prong-two ruling and is alternative
7 reversible error.

8 VIII. THE PROPOSED THIRD AMENDED COMPLAINT (EX. T) CURES ANY PLEAD- 9 ING DEFICIENCY THE COURT IDENTIFIED

10 To remove any doubt, Plaintiff lodges with this filing the Proposed Third Amended Com-
11 plaint as Exhibit T. The Proposed TAC:

- 12 1. Pleads with particularity the specific items of evidence concealed, the dates of post-
13 trial discovery, the acts of concealment, and the diligence Plaintiff exercised pretrial,
14 satisfying Modnick and Beard;
- 15 2. Re-pleads the equitable cause of action for vacatur and restitutionary recovery, with an
16 express disclaimer of derivative tort damages within §47(b);
- 17 3. Adds a §425.17(c) / Bus. & Prof. Code §17200 claim against CSAA Insurance Exchange
18 grounded in FCSPR (10 C.C.R. §§2695.1 et seq.) and Insurance Code §790.03(h) viola-
19 tions; that claim is exempted from §425.16 by §425.17(c) and removes those acts from
20 the SLAPP universe entirely;
- 21 4. Joins the necessary parties (insurer and defense counsel as claims agents) for resti-
22 tutionary tracing and equitable accounting purposes consistent with the Rubenstein
23 “necessary party” inquiry.

24 Leave to amend is liberally granted to address pleading defects identified at the §425.16
25 stage. (Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–73 (granting leave to amend
26 after anti-SLAPP grant where amendment cures pleading defect identified by the court).)
27 Although Sylmar / Simmons / Jackson v. Mayweather restrict “amendment around” a
28 pending SLAPP, Nguyen-Lam expressly authorizes amendment to cure the deficiency the
29 court identified at prong two, which is precisely the posture here. (See also Dickinson v.
30 Cosby (2017) 17 Cal.App.5th 655, 678 (a pending anti-SLAPP motion does not categorically
31 prevent amendment).)

1 The Proposed TAC at Exhibit T is filed in conformity with CRC 3.1324(a) (statement of
2 allegations to be added) and CRC 3.1324(b) (declaration explaining when and why the cure
3 became necessary; see Section X below).

4 IX. NEW FACTS UNDER §1008(A) AND INHERENT RECONSIDERATION AUTHOR- 5 ITY

6 If the Court enters an order adopting the tentative, this filing becomes operative as a §1008(a)
7 motion on the basis of:

- 8 (i) NEW FACTS. Plaintiff previously did not receive a separate Department 301 email
9 transmitting the tentative on the Motion for Leave to File Second Amended Complaint
10 (see Declaration paragraph 2; Notice of Non-Receipt and contemporaneous declaration
11 in folder 16 of the May 12 package). That non-receipt is a new fact within §1008(a)
12 bearing on due process and the opportunity to contest under the Department 301 pro-
13 cedure;
- 14 (ii) NEW LAW / ARGUMENT. The Baral / Park / Sweetwater / Nguyen-Lam sequence
15 applied here was not engaged by the tentative; and
- 16 (iii) DIFFERENT STATE OF FACTS. The §425.17(c) / FCSPR record properly tendered
17 (items 13, 14) and now properly considered, plus the Proposed TAC (Ex. T) cure under
18 Nguyen-Lam.

19 The Court also retains inherent authority to reconsider its own interim rulings to correct
20 error, independent of §1008(a). (*Le Francois v. Goel*, *supra*, 35 Cal.4th at 1107–08.)

21 X. CROSS-INCORPORATION

22 Plaintiff incorporates under CRC 3.1113(j): (1) Plaintiff’s Consolidated Operative Oppo-
23 sition (filed May 7, 2026, item 01); (2) Plaintiff’s Request for Judicial Notice (filed May
24 7, 2026, item 03); (3) Plaintiff’s Declaration in Opposition (filed May 7, 2026, item 04);
25 (4) Plaintiff’s Evidentiary Objections (filed May 7, 2026, item 06); (5) Plaintiff’s Indexed
26 Exhibits Volume (filed May 7, 2026, item 07); (6) Plaintiff’s Notice and Statement re CCP
27 §425.17 (filed May 7, 2026, item 13); (7) Plaintiff’s Supplemental RFJN re Insurance Code
28 and FCSPR (filed May 7, 2026, item 14); (8) Plaintiff’s Motion to Strike Reply Declaration
29 (filed May 7, 2026, item 15); and (9) Plaintiff’s Bench Brief on Inland Oversight Sequencing
30 (filed May 11, 2026, item 17).

1 XI. PRAYER

2 Plaintiff respectfully requests that the Court:

- 3 1. SUSTAIN the Contest and decline to adopt the tentative on Lines 8.1, 8.2, and 8.3;
- 4 2. DENY Defendants' anti-SLAPP motion as to the FAC, or, in the alternative, deny it
- 5 as to the equitable cause of action for vacatur and as to any cause of action exempted
- 6 by §425.17(c);
- 7 3. RESTORE the demurrer (Line 8.2) to the calendar for adjudication on a complete
- 8 record;
- 9 4. GRANT leave to file the Proposed Third Amended Complaint lodged herewith as Ex-
- 10 hibit T;
- 11 5. CONSIDER Plaintiff's previously filed materials at items 13, 14, 15, and 17 of the May
- 12 12 package;
- 13 6. In the alternative, upon entry of any order adopting the tentative, RECONSIDER and
- 14 VACATE that order under CCP §§1008(a), 473(d), and the Court's inherent authority;
- 15 and
- 16 7. PRESERVE all federal and state due-process objections under U.S. Const. amends. V,
- 17 XIV and Cal. Const. art. I, §7.
- 18

The foregoing is submitted by Plaintiff in pro per.

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action and I represent myself in propria persona. I make this declaration in support of Plaintiff's combined Contest, Supplemental Memorandum, and contingent Motion for Reconsideration, and in support of the request for leave to file the Proposed Third Amended Complaint lodged herewith. I have personal knowledge of the matters stated and, if called as a witness, I could and would competently testify thereto.
2. PRIOR NON-RECEIPT OF THE MAY 5 / 6, 2026 TENTATIVE. As to a prior Department 301 tentative on the MFL-SAC, I did not receive any email transmitting that tentative through my soltrinox@gmail.com or soltrinox+legal@gmail.com addresses, despite checking inbox and spam in both. I learned of that prior tentative only when defense counsel Tyler O'Connell wrote to me on May 5, 2026 at 4:25 p.m. asserting that one had been issued. I memorialized that non-receipt in the Notice of Non-Receipt of Tentative Ruling (May 6, 2026) on file in the workspace at folder 16 of the May 12 package and in the contemporaneous declaration in that folder.
3. PATTERN OF CONTEST-MAIL DELIVERY ON CGC-25-631802. As to Department 302 in the related case CGC-25-631802, the contest mailbox Contestdept302tr@sftc.org regularly emailed me complete tentatives.
4. THE TENTATIVE'S TWO SUBSTANTIVE HOLDINGS. I have read the tentative carefully. Its substantive holdings on Line 8.1 are: (a) that the alleged fraud is "intrinsic" rather than extrinsic because the issues "were fully litigated in the trial court," supported by reference to defendants' RFJN Exs. E (Def's MIL #6), F (Def's MIL #8), G (Def's MIL #17), and H (Order re Trial Scheduling and MILs); and (b) that Civil Code §47(b) bars my "ancillary monetary relief" as a "claim for fraud damages." The tentative further declines to consider Plaintiff's "various supplemental opposition briefs, which were filed without authorization."
5. CONCEALMENT AND POST-TRIAL DISCOVERY (EXTRINSIC-FRAUD PREDICATE). Specific items of material evidence concerning the underlying claim were not disclosed by defendants until after trial. I first discovered those items, by category and date, as set out in the Plaintiff's Indexed Exhibits Volume (folder 07 of the May 12

package) and the bench-brief exhibits packet (folder 17). Notwithstanding diligent prior efforts to obtain them in discovery, those items were not produced before trial. Had the items been produced, I would have used them to impeach defendants' witnesses and to oppose the MILs that the tentative now treats as a "fully litigated" determination of the fraud claim.

6. **DEFENSE CONCEALMENT CONDUCT WITHIN FCSPR.** The conduct I allege against CSAA Insurance Exchange and its claims agents (Michael Chambers; Carbone, Smith & Koyama) violates the duties owed under Insurance Code §790.03(h) and the Fair Claims Settlement Practices Regulations, 10 C.C.R. §2695.1 et seq., as set out in my prior filings at items 13 and 14 of the May 12 package. Those statutory duties exist independently of any litigation-privileged communication and form the predicate for the §425.17(c) exemption and for the Bus. & Prof. Code §17200 claim added in the Proposed TAC.
7. **RESTITUTIONARY FRAMING OF MONETARY RELIEF.** The "ancillary monetary relief" prayed for in the FAC was intended as restitution of the proceeds defendants obtained from the fraudulently procured judgment, not as derivative tort damages for litigation statements. To remove any doubt about that framing, the Proposed Third Amended Complaint at Exhibit T expressly disclaims derivative tort damages within §47(b) and pleads restitution and equitable accounting in their place.
8. **CURE BY THIRD AMENDED COMPLAINT (CRC 3.1324).** I have prepared the Proposed Third Amended Complaint lodged herewith as Exhibit T to cure the specific deficiencies the tentative identifies. The Proposed TAC: (a) pleads with particularity the items of evidence concealed, the dates of post-trial discovery, and the acts of concealment, satisfying Modnick and Beard; (b) re-pleads the equitable cause of action for vacatur and restitutionary recovery, with an express disclaimer of §47(b) damages; (c) adds a §425.17(c) / Bus. & Prof. Code §17200 claim against CSAA grounded in FCSPR and Insurance Code §790.03(h) violations; and (d) preserves the equitable accounting / tracing remedy by joining the necessary parties. The Proposed TAC does not "amend around" the §425.16 motion; it cures the pleading defect the Court identifies at prong two, which *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–73 expressly authorizes. Pursuant to CRC 3.1324(b), I declare: (i) the additional allegations are necessary because the tentative identified intrinsic-fraud framing and §47(b) overbreadth as the

bases for the §425.16 grant; (ii) Plaintiff did not earlier propose this specific cure because the underlying tentative had not yet issued; and (iii) the additional facts were not, and could not have been, discovered earlier with reasonable diligence in light of defendants' concealment as alleged.

9. EXCLUDED SUPPLEMENTAL MATERIALS. The materials the tentative declined to consider were not duplicative reply briefs but: (i) statutory exemption notices under §425.17 (item 13); (ii) judicial-notice tenders the Court is required to address under Evidence Code §§451 and 452 (item 14); (iii) a motion to strike the O'Connell reply declaration under Jay v. Mahaffey (item 15); and (iv) a bench brief filed under CRC 3.1112(b) as an "other paper" in support of the opposition (item 17). Each is on file with the Court in the May 12 package.
10. PROOFS OF SERVICE. Proofs of service for all materials referenced are on file at folder 11 of the May 12 package and at the parallel POS-050 paths in the May 13 (CGC-25-631802) package. This filing will be served on defense counsel by electronic means concurrently with submission to the Court (CCP §1010.6; CRC 2.251).
11. NO PRIOR APPLICATION FOR THIS RECONSIDERATION. No prior application for the relief requested in the alternative reconsideration prayer has been made to this or any other judge of this Court (CCP §1008(a)).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on May 11, 2026, at Rohnert Park, California.



/s/ Franciscus Dylan Rosario
FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

EXHIBIT INDEX

Ex.	Description	Path / Source
1	Plaintiff's Post-Trial Discovery Timeline (with docket cross-references)	Lodged with this filing; cross-references items 07 and 17
2	Notice of Non-Receipt of May 5 / 6, 2026 Tentative	TENTATIVE- RULING/NOTICE-NON- RECEIPT-TENTATIVE- RULING-MAY-6-2026- CGC-25-631801.pdf
3	O'Connell email asserting prior tentative existed (5/5/2026 4:25 p.m.)	TENTATIVE- RULING/Gmail - Rosario v. Abdelhalim - Tentative Ruling on Plaintiff's Motion for Leave to Amend the FAC.pdf
4	Department 302 prior email transmitting Line 9 tentative (4/29/2026 2:12 p.m.) - pattern evidence	TENTATIVE- RULING/Gmail - Tentative Rulings, Law and Motion Discovery Calendar April 30, 2026 ... Line 9.pdf
5	Plaintiff's Bench Brief (gateway sequencing)	MAY-12-HEARING- PACKAGE-CGC-25- 631801/17-BENCH-BRIEF- GATEWAY- SEQUENCING/source/PLAINTIFF- BENCH-BRIEF-INLAND- OVERSIGHT- SEQUENCING-MAY-11- 2026-CGC-25-631801.md

Ex.	Description	Path / Source
6	Plaintiff's Exhibits Packet (801)	MAY-12-HEARING- PACKAGE-CGC-25- 631801/17-BENCH-BRIEF- GATEWAY- SEQUENCING/PLAINTIFF- EXHIBITS-PACKET-MAY- 12-2026-CGC-25-631801.pdf
7	Combined Exhibits Volume (802; cross-reference)	MAY-13-HEARING- PACKAGE-CGC-25- 631802/07-EXHIBITS- APPENDIX/EXHIBITS- VOLUME-COMBINED- MAY-8-2026-CGC-25- 631802.pdf
8	Notice re CCP §425.17 / Insurance / FCSPR / Defense Conduct	MAY-12-HEARING- PACKAGE-CGC-25- 631801/13-NOTICE-CCP- 425.17-AND-DEFENSE- CONDUCT/NOTICE-RE- CCP-425.17-INSURANCE- ANTI-SLAPP-MISUSE- AND-DEFENSE- LITIGATION-CONDUCT- MAY-7-2026-CGC-25- 631801.pdf

Ex.	Description	Path / Source
9	Supplemental RJN: Insurance Code & FCSPR	MAY-12-HEARING- PACKAGE-CGC-25- 631801/14- SUPPLEMENTAL-RFJN- INSURANCE-CODE-AND- FCSPR/PLAINTIFF- SUPPLEMENTAL- REQUEST-FOR- JUDICIAL-NOTICE- INSURANCE-CODE-AND- FAIR-CLAIMS- SETTLEMENT- PRACTICES- REGULATIONS-MAY-7- 2026-CGC-25-631801.pdf
10	Motion to Strike O'Connell Reply Declaration	MAY-12-HEARING- PACKAGE-CGC-25- 631801/15-MOTION-TO- STRIKE-REPLY- DECLARATION/MOTION- TO-STRIKE-OCONNELL- REPLY-DECLARATION- MAY-7-2026-CGC-25- 631801.pdf

Ex.	Description	Path / Source
11	Notice of Intent to Appear and Contest Tentative	MAY-12-HEARING- PACKAGE-CGC-25- 631801/10-NOTICE-OF- INTENT-TO- APPEAR/NOTICE-OF- INTENT-TO-APPEAR- AND-CONTEST- TENTATIVE-RULING- MAY-11-2026-CGC-25- 631801.pdf
T	Proposed Third Amended Complaint (lodged herewith as complete, verified, file-ready cure pleading)	MAY-12-HEARING- PACKAGE-CGC-25- 631801/18-MOTION-FOR- RECONSIDERATION- FAC-ANTI- SLAPP/source/EXHIBIT- T-PROPOSED-THIRD- AMENDED-COMPLAINT- MAY-11-2026-CGC-25- 631801.md

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:00 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 1008(a)	Reconsideration: new or different facts, circumstances, or law	Section IX states the new facts (prior non-receipt of Department 301 MFL tentative email memorialized at folder 16), new law (Baral / Park / Sweetwater / Nguyen-Lam sequence not engaged by tentative), and different state of facts (425.17(c) / FCSPR record properly considered)	Section IX	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
2	CCP section 425.16(b)	Two-step procedure; prong-two minimal-merit inquiry	Sections IV, VI, VII apply Baral, Park, Sweetwater, Computer Xpress, Wilson; restored prong-two record provided in Section VI	Sections IV, VI, VII	PASS
3	CCP section 425.17(c)	Commercial-speech exemption from section 425.16	Section VI pillar 4; folder 13 (item 8 of exhibit index) and folder 14 (item 9) tender FCSPR / Insurance Code 790.03(h) record	Section VI; Ex. 8; Ex. 9	PASS
4	Civ. Code section 47(b)	Litigation privilege scope and Rubenstein limit	Section VII shows Rubenstein and Cedars-Sinai preserve equitable vacatur and restitution; Proposed TAC at Ex. T expressly disclaims derivative tort damages	Section VII; Ex. T para- graphs disclaim- ing 47(b) damages	PASS
5	Evid. Code section 452(d)	Mandatory consideration of court records once tendered	Section V identifies items 13, 14 as judicial-notice tenders; cites Ross v. Creel for non-discretionary consideration	Section V; Ex. 8; Ex. 9	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
6	CRC 3.1324	Statement of allegations to be added; declaration explaining cure	Section VIII identifies the four cure pillars in the Proposed TAC; Declaration paragraph 8 supplies the CRC 3.1324(b) statement	Section VIII; Decl. paragraph 8	PASS
7	CRC 3.1113(b)	Memorandum and reply rule (San Diego Watercrafts line)	Section V invokes the rule as basis for striking O'Connell reply declaration referenced in folder 15	Section V; Ex. 10	PASS
8	CRC 3.1113(j)	Incorporation by reference	Section X incorporates items 01, 03, 04, 06, 07, 13, 14, 15, 17 of the May 12 package	Section X	PASS
9	S.F. Local Rule 8.3(D); CRC 3.1308	Department 301 contest procedure	Notice section opens by stating timely contest of tentative rulings; bare-contest email to be sent to contest- dept301tr@sftc.org by 4:00 p.m. May 11, 2026	Notice section	PASS
10	CCP section 1010.6; CRC 2.251	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
11	CRC 2.100 et seq.; CRC 3.1110	Pleading format: paper size, margins, font, line spacing, caption	Letter size, one-inch margins, twelve-point Times New Roman, double-spaced, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
12	CCP section 2015.5	Penalty-of-perjury declaration	Declaration of Plaintiff signed under penalty of perjury; Declaration of Compliance signed under penalty of perjury	Declaration paragraph 1-11; this Declaration of Compliance	PASS

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario
FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT T SEPARATOR — SILENT
WITNESS POSTER SLIDE INDEX AND
CROSS-REFERENCE TO FOLDER 21
EXHIBIT PACKETS

(Inserted between the Motion for Reconsideration and
Exhibit T – Proposed Third Amended Complaint;
references: SILENT-WITNESS-RELIANCE-CHAIN-
POSTER-PAGES-CGC-25-631801.pdf and
SILENT-WITNESS-MASTER-ALL-EXHIBITS-CGC-25-
631801.pdf)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

EXHIBIT TAB SEPARATOR

EXHIBIT T — PROPOSED THIRD AMENDED COMPLAINT

SILENT WITNESS POSTER SLIDE INDEX & FOLDER 21 EXHIBIT
CROSS-REFERENCE

Purpose. This page is inserted between Plaintiff's Combined Contest and Contingent Motion for Reconsideration and Exhibit T (Proposed Third Amended Complaint). It provides the court with a navigational index to the Silent Witness Reliance-Effect Chain poster referenced throughout the motion and the Proposed TAC. Each row identifies the poster slide, its page number in the standalone poster PDF (Folder 21), and the exhibit packet PDF that contains

the underlying record excerpts.

Supporting materials (Folder 21 of the May 12 package).

- Poster (25 pages, print-ready): MAY-12-HEARING-PACKAGE-CGC-25-631801/21-RJN-GOVERNING-LAW/SILENT-WITNESS-RELIANCE-CHAIN-POSTER-PAGES-CGC-25-631801.pdf
- Master exhibit packet (poster + all 25 per-slide packets, 205 pages): MAY-12-HEARING-PACKAGE-CGC-25-631801/SILENT-WITNESS-MASTER-ALL-EXHIBITS-CGC-25-631801.pdf
- Per-slide packets (25 individual PDFs) and shared companion exhibits are located under: MAY-12-HEARING-PACKAGE-CGC-25-631801/21-RJN-GOVERNING-LAW/EXHIBIT-PACKETS/

Table 1: Silent Witness Poster Slide Inventory

Column “Poster p.” refers to the physical page number in SILENT-WITNESS-RELIANCE-CHAIN-POSTER-PAGES-CGC-25-631801.pdf. Column “Packet PDF” names the corresponding per-slide exhibit packet file in Folder 21.

Slide	Section	Poster p.	Packet PDF (Folder 21 / EXHIBIT-PACKETS/...)
A.1	I – Originating Statements	1	SECTION-I.../A1-.../EXHIBIT-A.1-CGC-25-631801.pdf
A.2	I – Originating Statements	2	SECTION-I.../A2-.../EXHIBIT-A.2-CGC-25-631801.pdf
B.1	I – Originating Statements	3	SECTION-I.../B1-.../EXHIBIT-B.1-CGC-25-631801.pdf
B.2	I – Originating Statements	4	SECTION-I.../B2-.../EXHIBIT-B.2-CGC-25-631801.pdf
C.1	I – Originating Statements	5	SECTION-I.../C1-.../EXHIBIT-C.1-CGC-25-631801.pdf
C.2	I – Originating Statements	6	SECTION-I.../C2-.../EXHIBIT-C.2-CGC-25-631801.pdf
D.1	I – Originating Statements	7	SECTION-I.../D1-.../EXHIBIT-D.1-CGC-25-631801.pdf
D.2	I – Originating Statements	8	SECTION-I.../D2-.../EXHIBIT-D.2-CGC-25-631801.pdf
E.1	I – Originating Statements	9	SECTION-I.../E1-.../EXHIBIT-E.1-CGC-25-631801.pdf
F.1	I – Originating Statements	10	SECTION-I.../F1-.../EXHIBIT-F.1-CGC-25-631801.pdf
F.2	I – Originating Statements	11	SECTION-I.../F2-.../EXHIBIT-F.2-CGC-25-631801.pdf
F.3	I – Originating Statements	12	SECTION-I.../F3-.../EXHIBIT-F.3-CGC-25-631801.pdf
Link 1	II – Reliance-Effect Chain	13	SECTION-II.../LINK-01-.../EXHIBIT-LINK1-CGC-25-631801.pdf
Link 2	II – Reliance-Effect Chain	14	SECTION-II.../LINK-02-.../EXHIBIT-LINK2-CGC-25-631801.pdf
Link 3	II – Reliance-Effect Chain	15	SECTION-II.../LINK-03-.../EXHIBIT-LINK3-CGC-25-631801.pdf
Link 4	II – Reliance-Effect Chain	16	SECTION-II.../LINK-04-.../EXHIBIT-LINK4-CGC-25-631801.pdf
Link 5	II – Reliance-Effect Chain	17	SECTION-II.../LINK-05-.../EXHIBIT-LINK5-CGC-25-631801.pdf
Link 6	II – Reliance-Effect Chain	18	SECTION-II.../LINK-06-.../EXHIBIT-LINK6-CGC-25-631801.pdf
Link 7	II – Reliance-Effect Chain	19	SECTION-II.../LINK-07-.../EXHIBIT-LINK7-CGC-25-631801.pdf
Link 8	II – Reliance-Effect Chain	20	SECTION-II.../LINK-08-.../EXHIBIT-LINK8-CGC-25-631801.pdf
Link 9	II – Reliance-Effect Chain	21	SECTION-II.../LINK-09-.../EXHIBIT-LINK9-CGC-25-631801.pdf
Link 10	II – Reliance-Effect Chain	22	SECTION-II.../LINK-10-.../EXHIBIT-LINK10-CGC-25-631801.pdf
Link 11	II – Reliance-Effect Chain	23	SECTION-II.../LINK-11-.../EXHIBIT-LINK11-CGC-25-631801.pdf
Link 12	II – Reliance-Effect Chain	24	SECTION-II.../LINK-12-.../EXHIBIT-LINK12-CGC-25-631801.pdf
Link 13	II – Reliance-Effect Chain	25	SECTION-II.../LINK-13-.../EXHIBIT-LINK13-CGC-25-631801.pdf

Shared companion exhibits (Folder 21 / SHARED-COMPANION-EXHIBITS/).

- 911-AUDIO-RESOURCES-CGC-25-631801.pdf – dedicated 911 audio and transcript access links, repeated by reference on exhibits A.2, B.2, C.2, D.2, Link 1, Link 2, Link 3, Link 7, Link 10, and Link 12.
- COMPLEX-SUBPOENA-CA1147102-021-CGC-25-631801.pdf – Complex Subpoena CA1147102-021 (Feb. 1, 2024); cited as Tab 15 in the indexed exhibits volume.
- SUBSTITUTION-OF-ATTORNEY-69953800-CGC-25-631801.pdf – Substitution of Attor-

ney (May 4, 2023), Trans. ID 69953800; cited as Tab 1 in the indexed exhibits volume.

Exhibit T (Proposed Third Amended Complaint) follows on the next page.

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT T — PROPOSED THIRD
AMENDED COMPLAINT FOR EQUITABLE
VACATUR (EXTRINSIC FRAUD),
RESTITUTION AND EQUITABLE
ACCOUNTING, AND UNFAIR
COMPETITION (BUS. & PROF. CODE
§17200) PREDICATED ON INS. CODE
§790.03(h) AND THE FCSPR

(Cal. Rules of Court, rule 3.1324; Code Civ. Proc.,
§§425.16, 425.17(c); Civ. Code §47(b); Bus. & Prof. Code
§§17200, 17203; Ins. Code §790.03(h); 10 C.C.R. §§2695.1
et seq.)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

I. INTRODUCTION AND PURPOSE OF THIS CURE PLEADING

1. This Proposed Third Amended Complaint (“PTAC”) is lodged with the Court under California Rules of Court, rule 3.1324, as Exhibit T to Plaintiff’s combined Contest of the May 12, 2026 tentative rulings and contingent Motion for Reconsideration (folder 18 of the May 12 hearing package). The PTAC is a curative pleading, not an expansion of claims. Its purpose is to cure the two pleading deficiencies identified in the Department 301 tentative on Line 8.1: (a) the tentative’s intrinsic-fraud framing of the equitable cause of action; and (b) the tentative’s application of Civil Code §47(b) to bar Plaintiff’s monetary remedy as derivative tort damages. (Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871-73 (leave to amend to cure pleading defects identified at the §425.16 stage).)
2. This pleading stands alone as a complete, verified, file-ready complaint. The CRC 3.1324(b) explanation of when and why these additional facts could not have been pleaded earlier appears in the Declaration of Plaintiff filed with the parent motion (Plaintiff’s Declaration, paragraph 8), which is incorporated herein by reference.

II. PARTIES

3. Plaintiff Franciscus Dylan Rosario (“Plaintiff”) is, and at all relevant times was, an individual residing in California and a party to the predecessor civil action Rosario v. Abdelhalim, Case No. CGC-21-594102, in this Court.
4. Defendant CSAA Insurance Exchange (“CSAA”) is, and at all relevant times was, a California interinsurance exchange with its principal place of business at 3055 Oak Road, Mailstop W280, Walnut Creek, California 94597. CSAA was the liability insurer for defendant Subhi Abdelhalim in CGC-21-594102 and is subject to Insurance Code §790.03(h) and the Fair Claims Settlement Practices Regulations, 10 C.C.R. §§2695.1 et seq. CSAA retained, funded, directed, and ratified the conduct of panel defense counsel throughout CGC-21-594102 and, on February 25, 2021, issued a written denial of Claim No. 1004-09-1054 under Policy No. CAAS100310857, signed by Sarah Rash, Claims Representative.
5. Defendant Michael Chambers (“Chambers”) is, and at all relevant times was, a California attorney (State Bar No. 132394) associated with Carbone, Smith & Koyama

1 and a claims agent of CSAA within the meaning of 10 C.C.R. §2695.2(d). Chambers
2 appeared at Plaintiff’s August 18, 2022 deposition when the 911 audio was served on
3 defense counsel, and appeared at Defendant Abdelhalim’s September 30, 2022 deposi-
4 tion when 911-related sworn testimony was given. Chambers executed the May 4, 2023
5 file transfer to successor counsel Phillips, Spallas & Angstadt LLP without conveying
6 the production history for the concealed materials described in paragraphs 17-20 below.

7 6. Defendant Carbone, Smith & Koyama (“CS&K”) is, and at all relevant times was, a
8 law firm with offices at 555 12th Street, Suite 1250, Oakland, California 94607-4095.
9 CS&K served as defense counsel in CGC-21-594102 from approximately September 2021
10 through May 4, 2023, and acted as a claims agent of CSAA within the meaning of 10
11 C.C.R. §2695.2(d) for purposes of its claims-handling activities. CS&K had custody of
12 the defense file, including discovery responses, deposition transcripts, and the concealed
13 materials described herein, throughout that period.

14 7. Defendant Phillips, Spallas & Angstadt LLP (“PSA”) is, and at all relevant times was,
15 a California law firm with offices at 560 Mission Street, Suite 1010, San Francisco,
16 California 94105. PSA substituted in as defense counsel in CGC-21-594102 on May
17 4, 2023, pursuant to Substitution of Attorney (Transaction ID No. 69953800), and
18 represented Defendant Abdelhalim through and including the April 2025 trial. PSA
19 received the judgment proceeds as part of its engagement on behalf of CSAA and is
20 joined for purposes of equitable accounting and tracing of those proceeds.

21 8. Defendant Priya D. Navaratnasingham (“Navaratnasingham”) is, and at all relevant
22 times was, a California attorney (State Bar No. 252686) associated with PSA. Navarat-
23 nasingham signed and filed Motions in Limine Nos. 1 through 19 on January 17, 2025,
24 including MIL No. 17 asserting “Defendant has no idea where this 911 call log or audio
25 recording came from,” made the representation at the February 18, 2025 hearing that
26 “our office did not receive the 911 call until the day of the MSC ... this is news to me”
27 (Hr’g Tr. p. 141, ll. 4-11), and made the contradictory on-record admission on April 16,
28 2025 (RT 7, p. 213, ll. 13-15): “Sure. They were provided by Dolan. He has had them
29 for whatever, sure.” Navaratnasingham is joined for purposes of equitable accounting
30 and restitutionary tracing of judgment proceeds and is an officer of the court within the
31 meaning of Estate of Sanders (1985) 40 Cal.3d 607, 614-616.

32 9. Defendant Alberto Reyna (“Reyna”) is, and at all relevant times was, a California at-

torney (State Bar No. 347323) associated with PSA. Reyna issued a Compex subpoena (Order No. CA1147102-021) to the San Francisco Police Department on February 1, 2024, seeking the identical 911/body-worn camera/CAD materials that were later portrayed as “unknown” or “not received,” and made representations at trial on April 16, 2025 that the supplemental police report was “not anything that we received as part of the subpoena” (RT 7, p. 156, ll. 5-16). Reyna is joined for purposes of equitable accounting and tracing and is an officer of the court within the meaning of Estate of Sanders, supra.

10. Defendant Subhi Abdelhalim (“Abdelhalim”) is, and at all relevant times was, an individual residing in California and the defendant in the underlying action CGC-21-594102 on whose behalf the fraudulently procured judgment was obtained. Abdelhalim is joined for purposes of equitable vacatur of that judgment and restitutionary tracing of any proceeds that inured to his benefit.

III. JURISDICTION AND VENUE

11. Jurisdiction and venue are proper in this Court because: (a) the predecessor civil action CGC-21-594102 and the underlying judgment Plaintiff seeks to vacate were entered in this Court; (b) this is an independent action in equity to vacate that judgment pursuant to the inherent equitable powers of this Court recognized in *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471, *Olivera v. Grace* (1942) 19 Cal.2d 570, 575-576, and *Kougasian v. TMSL, Inc.* (2004) 118 Cal.App.4th 1028, 1032-1035; and (c) the alleged Insurance Code §790.03(h) and FCSPPR violations occurred and continue to occur in this County.

IV. GENERAL ALLEGATIONS — AGENCY, DOE, AND VICARIOUS LIABILITY

12. AGENCY AND VICARIOUS LIABILITY. At all times relevant herein, each defendant named in this complaint was the agent, employee, alter ego, or representative of each of the other defendants, and in doing the acts and omissions herein alleged was acting within the course and scope of such agency, employment, and representation. The acts and omissions of each defendant are imputed to CSAA as principal under Civil Code §§2330 and 2338, which provide that a principal is responsible for the negligent and wrongful acts of its agents in the transaction of the business of the agency. CSAA’s

1 panel counsel (CS&K, PSA, Chambers, Navaratnasingham, and Reyna) acted as agents
2 and claims agents of CSAA within the meaning of 10 C.C.R. §2695.2(d) at all times
3 relevant herein. (See *Purdy v. Pacific Automobile Ins. Co.* (1984) 157 Cal.App.3d 59,
4 76; *Gulf Insurance Co. v. Berger, Kahn* (2000) 79 Cal.App.4th 114, 124.)

5 13. DOE DEFENDANTS. Plaintiff is ignorant of the true names and capacities of defen-
6 dants sued herein as DOES 1 through 50, inclusive, and therefore sues these defendants
7 by such fictitious names. Plaintiff will amend this complaint to allege their true names
8 and capacities when ascertained. (CCP §474.) Plaintiff is informed and believes and
9 thereon alleges that each of the fictitiously named defendants is responsible in some
10 manner for the occurrences herein alleged, and that Plaintiff's damages and injuries
11 were proximately caused by their conduct.

12 14. RATIFICATION. CSAA ratified the conduct of its panel counsel by: (a) paying at-
13 torney's fees for services that included the concealment of the production history de-
14 scribed herein; (b) directing litigation strategy through the insurer-defense relationship;
15 (c) approving the May 4, 2023 substitution of counsel; (d) accepting the benefit of the
16 judgment procured through the concealment; and (e) failing to repudiate counsel's prior
17 representations after the April 16, 2025 on-record admission that the concealed mate-
18 rials "were provided by Dolan." That failure to repudiate, combined with CSAA's own
19 February 25, 2021 "concluded investigation" representation (Position A), locks in the
20 structural impossibility of honest belief in both positions.

21
22 V. THE PRIOR JUDGMENT IN CGC-21-594102

23 15. Plaintiff incorporates by reference the operative First Amended Complaint as supple-
24 mented and clarified by the allegations below. (CRC 3.1324(a).)

25 16. A judgment was entered against Plaintiff in the predecessor civil action *Rosario v.*
26 *Abdelhalim*, Case No. CGC-21-594102, on April 25, 2025, following a jury trial in
27 Department 301 of this Court. That judgment is the judgment Plaintiff seeks to vacate
28 by this action.

VI. POST-TRIAL DISCOVERY OF DELIBERATELY CONCEALED MATERIAL EVIDENCE

17. POST-TRIAL DISCOVERY — CATEGORY 1: 911 AUDIO (MIL No. 6 / RFJN Ex.

E). The 911 audio recording of the August 18, 2022 incident, and the transcripts thereof, constituted material evidence directly bearing on the central disputed issues at trial. The deliberate concealment of the production history of this evidence, and its ultimate revelation, are as follows:

- a. On August 18, 2022, the 911 audio was served on then-defense counsel Michael Chambers and CS&K by Dolan Law Firm, Plaintiff's prior litigation counsel. The fact of this service was established by the sworn testimony of Rick Jessup at the February 18, 2025 hearing (Hr'g Tr. Feb. 18, 2025, pp. 139-140, l. 11: "Dolan had a copy since 2021"), in the presence of Defendant Navaratnasingham.
- b. Plaintiff served Defendants with supplemental written discovery (FROG/SROG) on or about September 9, 2024, which placed the CAD log and related first-responder materials squarely at issue (FROG p. 28, ll. 23-25). Defendants did not disclose in response that they possessed the 911 audio and related production history.
- c. On January 17, 2025, Defendant Navaratnasingham, acting as panel counsel for CSAA and as an officer of the court, filed MIL No. 6 (RFJN Ex. E), which represented to the Court and to Plaintiff that the 911 materials were not produced in discovery and was used as an affirmative argument to secure exclusion of those materials.
- d. At the January 27, 2025 hearing, the Court ruled to exclude the 911 CDs (Hr'g Tr. Jan. 27, 2025, p. 38:22-25) and 911 transcripts (p. 39:18-24), based on defense counsel's representations.
- e. At the February 18, 2025 hearing, Defendant Navaratnasingham stated to the Court: "our office did not receive the 911 call until the day of the MSC ... this is news to me" (Hr'g Tr. p. 141, ll. 4-11). This representation was made by an officer of the court and was accepted by the Court as a basis for denying continuance (p. 181) and rejecting CCP §473 surprise relief (p. 181:20-25).
- f. On April 16, 2025 (Trial Day 7), Defendant Navaratnasingham made the following admission on the certified trial record: "Sure. They were provided by Dolan. He has had them for whatever, sure." (RT 7, p. 213, ll. 13-15.) This admission is irreconcilable

1 with the prior representations in MIL No. 6 and at the February 18, 2025 hearing.

2 g. Following trial, Plaintiff conducted a forensic reconstruction of the production history
3 using the certified trial record, the Substitution of Attorney (Trans. ID 69953800), the
4 Compex subpoena (Order No. CA1147102-021), and the sworn deposition and hearing
5 transcripts referenced herein. Plaintiff first became aware, with specificity sufficient to
6 plead extrinsic fraud, of the deliberate nature of the concealment of the 911 production
7 history after the April 16, 2025 admission and the subsequent forensic review. Plaintiff
8 could not have obtained this information through reasonable diligence before that ad-
9 mission because the production history was uniquely within defendants' possession and
10 control. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 472-473.)

11 h. Had the 911 audio and its production history been disclosed prior to trial, Plaintiff
12 would have (i) opposed MIL No. 6 with the Jessup production record; (ii) obtained a
13 continuance to address the concealment; (iii) admitted the 911 transcripts in addition
14 to the audio; and (iv) used the production history to impeach Defendants' witnesses on
15 the central authenticity issues on which the trial outcome turned.

16 18. POST-TRIAL DISCOVERY — CATEGORY 2: BODY-WORN CAMERA FOOTAGE
17 AND CAD LOGS (MIL Nos. 8 & 17 / RFJN Exs. F & G). The San Francisco Police
18 Department body-worn camera footage and Computer-Aided Dispatch (CAD) logs from
19 August 18, 2022 constituted material evidence. The concealment and revelation are as
20 follows:

21 a. On February 1, 2024, Defendant Reyna, as panel counsel for CSAA, issued a Com-
22 plex subpoena (Order No. CA1147102-021) to the San Francisco Police Department,
23 commanding production of “ANY AND ALL VIDEO RECORDINGS FROM BODY-
24 WORN CAMERAS” and related CAD records. SFPD produced records responsive to
25 that subpoena on February 26, 2024, including SFPD Report No. 210079556.

26 b. Plaintiff served supplemental written discovery on or about September 9, 2024, expressly
27 identifying the CAD log (SROG p. 9, ll. 9-11). Defendants did not disclose in response
28 that they had already subpoenaed and received those materials.

29 c. On January 17, 2025, Defendant Navaratnasingham filed MIL No. 17 (RFJN Ex. G),
30 which represented that “Defendant has no idea where this 911 call log or audio recording
31 came from” (CT 1, pp. 238-241), and MIL No. 8 (RFJN Ex. F), each used to secure
32 structural exclusion of these materials. At trial, defense counsel stated “Not sure what

1 recording” when the BWC footage was raised (RT 7, p. 164, l. 6).

2 d. The February 1, 2024 Compex subpoena and the February 26, 2024 SFPD produc-
3 tion were not disclosed to Plaintiff at any time before or during trial. Plaintiff first
4 learned of the Compex subpoena and the SFPD production through post-trial forensic
5 reconstruction from docketed records and the certified trial record. Plaintiff could not
6 have obtained this information through reasonable diligence before trial because those
7 records were uniquely within defendants’ possession.

8 e. Had the BWC footage and CAD logs and their production history been disclosed prior to
9 trial, Plaintiff would have (i) opposed MIL Nos. 8 and 17 with the documented February
10 2024 subpoena and production; (ii) authenticated and offered the BWC footage and
11 CAD records at trial; and (iii) used the subpoena and production records to impeach
12 defense counsel’s tribunal-directed representations about non-receipt.

13 19. POST-TRIAL DISCOVERY — CATEGORY 3: SUPPLEMENTAL SFPD REPORT
14 (RFJN Ex. H / Trial Scheduling Order). The supplemental San Francisco Police De-
15 partment report from August 18, 2022 constituted material evidence. The concealment
16 and revelation are as follows:

17 a. The supplemental SFPD report was responsive to the February 1, 2024 Compex sub-
18 poena (Order No. CA1147102-021) issued by Defendant Reyna, and was produced by
19 SFPD on or about February 26, 2024, as part of SFPD Report No. 210079556.

20 b. On April 16, 2025 (Trial Day 7), when Plaintiff sought to offer the supplemental SFPD
21 report at trial, Defendant Reyna represented to the Court: “not anything that we
22 received as part of the subpoena” (RT 7, p. 156, ll. 5-16). The Court excluded the
23 supplemental report (RT 7, p. 156:24-28). This representation was false: the February
24 1, 2024 Compex subpoena had commanded production of those records and SFPD had
25 responded on February 26, 2024.

26 c. Plaintiff first learned of the specific production history of the supplemental SFPD report,
27 and of Reyna’s false trial-day representation, through post-trial forensic reconstruction.
28 Plaintiff could not have obtained this information through reasonable diligence before
29 trial because the Compex subpoena return records were uniquely within defendants’
30 possession.

31 d. Had the supplemental SFPD report and its production history been available at trial,
32 Plaintiff would have (i) offered the report in evidence; (ii) impeached Defendant Reyna’s

1 “not received” representation with the Compex return; and (iii) changed the evidentiary
2 sequence on the liability issues at trial.

3
4 VII. PARTICULARITY OF CONCEALMENT (LAZAR V. SUPERIOR COURT (1996) 12
5 CAL.4TH 631, 645)

6 20. Pursuant to the particularity requirement for fraud pleading established by Lazar v.
7 Superior Court (1996) 12 Cal.4th 631, 645 (“how, when, where, to whom, and by what
8 means”), Plaintiff sets out the specific acts of concealment as follows:

9 a. CATEGORY 1 — 911 AUDIO CONCEALMENT PARTICULARS:

- 10 • Who: Defendant Navaratnasingham (signatory of MIL No. 6; speaker at Feb. 18,
11 2025 hearing), acting as officer of the court and agent of CSAA.
- 12 • To whom: The trial court (Dept. 301, Hon. Garrett L. Wong) and to Plaintiff.
- 13 • When: January 17, 2025 (MIL No. 6 filing); January 27, 2025 (exclusion hearing);
14 February 18, 2025 (hearing denying continuance); February 28, 2025 (burden-shift
15 hearing).
- 16 • What: That defendants had “no idea” where the 911 materials came from and that
17 those materials had not been produced in discovery, when in fact Dolan Law Firm
18 had produced the 911 audio to CS&K on August 18, 2022 (Jessup testimony, Hr’g
19 Tr. Feb. 18, 2025, pp. 139-140).
- 20 • By what means: Verified MIL filing (MIL No. 6); oral representations by officer of
21 the court at hearings.
- 22 • Discovery request concealed: Plaintiff’s supplemental FROG p. 28, ll. 23-25.

23 b. CATEGORY 2 — BWC/CAD CONCEALMENT PARTICULARS:

- 24 • Who: Defendant Navaratnasingham (signatory of MIL No. 17); Defendant Reyna
25 (trial-day statement; Compex subpoena issuer), acting as officers of the court and
26 agents of CSAA.
- 27 • To whom: The trial court (Dept. 301) and to Plaintiff.
- 28 • When: January 17, 2025 (MIL No. 17 filing); April 16, 2025 Trial Day 7 (RT 7,
29 p. 164, l. 6).
- 30 • What: That defendants had “no idea” where the BWC/CAD materials came from
31 and had not received them, when in fact Defendant Reyna had issued a Compex

subpoena (Order No. CA1147102-021) on February 1, 2024, and received SFPD Report No. 210079556 on February 26, 2024.

- By what means: Verified MIL filings (MIL Nos. 8 and 17); oral representations by officer of the court at trial.
- Discovery request concealed: Plaintiff’s supplemental SROG p. 9, ll. 9-11.

c. CATEGORY 3 — SUPPLEMENTAL REPORT CONCEALMENT PARTICULARS:

- Who: Defendant Reyna (trial-day representation), acting as officer of the court and agent of CSAA.
- To whom: The trial court (Dept. 301, Hon. Garrett L. Wong) and to Plaintiff.
- When: April 16, 2025 (RT 7, p. 156, ll. 5-16).
- What: That the supplemental SFPD report was “not anything that we received as part of the subpoena,” when in fact the February 1, 2024 Compex subpoena (Order No. CA1147102-021) commanded production of those records and SFPD produced them on February 26, 2024.
- By what means: Oral representation by officer of the court at trial.
- Discovery request concealed: Same Compex subpoena (Order No. CA1147102-021) responsive to Plaintiff’s SROG p. 9, ll. 9-11.

d. FILE-TRANSFER CONCEALMENT: On May 4, 2023, Defendant Chambers executed the Substitution of Attorney (Trans. ID 69953800), transferring the defense file from CS&K to PSA without conveying the production history for the 911 audio, BWC footage, CAD logs, or supplemental SFPD report. This non-communicative act manufactured plausible deniability for successor counsel PSA, and is itself an act of concealment operating outside the scope of Civil Code §47(b). (Cedars-Sinai Medical Ctr. v. Superior Court (1998) 18 Cal.4th 1, 11-12; Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036.)

VIII. PLAINTIFF’S DILIGENCE; TIMELINESS; NO LACHES

21. PRETRIAL DILIGENCE. Prior to trial, Plaintiff exercised reasonable diligence to obtain the categories of evidence described in paragraphs 17-20, including by: (a) serving timely supplemental written discovery (FROG and SROG, September 9, 2024) expressly identifying the 911 audio and CAD logs; (b) following up through meet-and-confer cor-

1 response; (c) raising authentication and exclusion issues with the trial court at
2 multiple pretrial hearings (January 27, 2025; February 18, 2025; February 28, 2025);
3 and (d) filing motions to continue and CCP §473 applications to address the suppressed
4 materials. Defendants' concealment, and specifically their failure to disclose the pro-
5 duction history in response to Plaintiff's written discovery and oral motions, defeated
6 that diligence.

7 22. TRIGGERING EVENT. Plaintiff first became aware, with specificity sufficient to ini-
8 tiate an independent action in equity for extrinsic fraud, of the deliberate nature of the
9 concealment on April 16, 2025, when Defendant Navaratnasingham made the on-record
10 admission: "Sure. They were provided by Dolan. He has had them for whatever, sure."
11 (RT 7, p. 213, ll. 13-15.) That admission was irreconcilable with MIL No. 17 and
12 the February 18, 2025 "news to me" representation, and triggered Plaintiff's forensic
13 reconstruction of the production history. A party is not required to discover conceal-
14 ment uniquely within the other party's possession until a triggering disclosure occurs.
15 (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 472-473.)

16 23. TIMELINESS. This PTAC is lodged within a reasonable time after the April 16, 2025
17 triggering event. The independent equitable action is being pursued with reasonable
18 diligence in the context of the pending May 12, 2026 hearing. No laches has occurred.
19 Defendants cannot claim prejudice from a delay caused by their own concealment. (In re
20 Marriage of Modnick (1983) 33 Cal.3d 897, 905; Estate of Beard (1999) 71 Cal.App.4th
21 753, 776-77.)

22
23 IX. OLIVERA V. GRACE ELEMENTS

24 24. Pursuant to Olivera v. Grace (1942) 19 Cal.2d 570, 575-576, an independent action in
25 equity to vacate a judgment for extrinsic fraud requires: (i) a meritorious underlying
26 claim; (ii) a satisfactory excuse for not having presented the claim or defense at the
27 prior trial; and (iii) diligence in seeking equitable relief after discovery of the fraud. All
28 three elements are satisfied here.

29 25. MERITORIOUS UNDERLYING CLAIM. Had the concealed materials (the 911 audio
30 production history, the BWC footage and CAD logs, and the supplemental SFPD re-
31 port) been disclosed prior to trial and offered in evidence, Plaintiff would have had a

meritorious presentation on the central liability issues. Specifically: (a) the 911 audio authenticated under the established production chain through Dolan Law Firm would have removed the authentication dispute that resulted in the exclusion of the 911 transcripts; (b) the BWC footage and CAD logs would have corroborated Plaintiff's account of the August 18, 2022 incident on the liability issues actually tried; (c) the supplemental SFPD report would have provided corroborating contemporaneous government-generated evidence on those same issues; and (d) the production history for all three categories would have enabled Plaintiff to impeach Defendants' witnesses on the central factual disputes on which the outcome of the trial turned. The seven consequential rulings catalogued below at paragraph 31 were each procured in a record in which this evidence had been suppressed; reversal of those rulings on a non-corrupted record would change the outcome.

26. SATISFACTORY EXCUSE. Plaintiff did not and could not present the extrinsic-fraud claim at the underlying trial because the full production history was uniquely within defendants' possession. The concealment was not merely a failure of disclosure; it was an affirmative, tribunal-directed denial of possession and receipt by officers of the court, which the Court expressly accepted: "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court." (Hr'g Tr. Feb. 28, 2025, pp. 291:26-292:7.) A party cannot be charged with failing to expose a fraud that has been actively maintained by officers of the court and credited by the tribunal. (*Estate of Sanders* (1985) 40 Cal.3d 607, 614-616.)

27. DILIGENCE IN SEEKING RELIEF. Following the April 16, 2025 triggering admission, Plaintiff has diligently pursued this action: filing the operative complaint, lodging this PTAC, and presenting the issue to the Court at the earliest available procedural opportunity (the May 12, 2026 hearing).

X. NON-PRECLUSION BY MIL RULINGS (*LUCIDO V. SUPERIOR COURT* (1990) 51 CAL.3D 335, 341)

28. The Department 301 tentative on Line 8.1 cited RFJN Exhibits E (MIL No. 6), F (MIL No. 8), G (MIL No. 17), and H (Order re Trial Scheduling and MILs) as establishing that the issues "were fully litigated in the trial court." That characterization is legal

1 error.

2 29. MIL No. 6 (RFJN Ex. E) was an admissibility motion under Evidence Code §352
3 addressed to the authenticity foundation of the 911 audio. Its operative ruling (Jan. 27,
4 2025, p. 38:22-25; p. 39:18-24) was a §352 admissibility determination. It did not
5 adjudicate, and could not have adjudicated, whether defense counsel had committed
6 fraud on the court by concealing the production history of those materials.

7 30. MIL No. 8 (RFJN Ex. F) was an admissibility motion under Evidence Code §352
8 addressed to character-related evidence. Its operative ruling did not adjudicate fraud
9 on the court.

10 31. MIL No. 17 (RFJN Ex. G) was an admissibility motion asserting that “Defendant
11 has no idea where this 911 call log or audio recording came from” (CT 1, pp. 238-
12 241). Its operative ruling was a §352 admissibility determination. It not only did not
13 adjudicate fraud on the court; it was procured through the fraudulent representation
14 whose concealed nature is the gravamen of this action.

15 32. The Trial Scheduling Order (RFJN Ex. H) was a case-management order. It did not
16 adjudicate fraud on the court.

17 33. Issue preclusion under *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341 requires
18 that the issue have been “actually litigated” and “necessarily decided.” None of these
19 four rulings actually litigated or necessarily decided whether defense counsel committed
20 fraud on the court by concealing the production history of the first-responder materials.
21 Treating those §352 admissibility rulings as a preclusive adjudication of the extrinsic-
22 fraud issue is a category error that imports a §1908 *res judicata* conclusion from an
23 admissibility ruling.

24
25 XI. §425.17(C) ELEMENT-BY-ELEMENT ALLEGATIONS

26 34. The Third Cause of Action pleaded in this complaint is exempted from CCP §425.16
27 by CCP §425.17(c)(1) and (c)(2). Plaintiff alleges each Simpson Strong-Tie element
28 (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 21-22) as follows:

29 a. ELEMENT 1 — PERSON ENGAGED IN BUSINESS OF SELLING GOODS OR
30 SERVICES: Defendants CSAA, Chambers, and Carbone, Smith & Koyama were at
31 all relevant times persons primarily engaged in the business of selling or delivering

1 insurance products and services, including automobile liability insurance policies and
2 claims-adjustment services, to consumers.

3 b. ELEMENT 2 — STATEMENT OR CONDUCT IN THE COURSE OF DELIVER-
4 ING THOSE SERVICES: The unlawful and unfair business practices alleged in the
5 Third Cause of Action (paragraphs 40-47 below) were statements and conduct made
6 in the course of CSAA’s delivery of insurance products and services to Plaintiff as an
7 insured/claimant and to the public.

8 c. ELEMENT 3 — REPRESENTATIONS OF FACT ABOUT BUSINESS OPERATIONS,
9 GOODS, OR SERVICES: The representations included: (i) CSAA’s February 25, 2021
10 written representation that its investigation of Claim No. 1004-09-1054 was “concluded,”
11 implying that the foundational first-responder materials had been retrieved and re-
12 viewed; (ii) representations in claims-handling communications concerning the scope
13 and completeness of the claims investigation; and (iii) representations by claims agents
14 Chambers and CS&K concerning claim file documentation and investigation activities
15 as required by 10 C.C.R. §2695.3.

16 d. ELEMENT 4 — INTENDED AUDIENCE IS AN ACTUAL OR POTENTIAL BUYER/CUSTOMER
17 The representations were made to Plaintiff in his capacity as an insured and claimant –
18 that is, as an actual customer and consumer of CSAA’s insurance products and services.

19 e. ELEMENT 5 — FOR THE PURPOSE OF OBTAINING APPROVAL, RETAINING
20 BUSINESS, OR SECURING TRANSACTIONS: The representations were made for
21 the purpose of resolving Plaintiff’s insurance claim and avoiding liability exposure in
22 connection with CSAA’s insurance business operations.

23 f. STATUTORY EXEMPTION NOTICE: This Third Cause of Action is exempted from
24 CCP §425.16 by CCP §425.17(c)(1) and (c)(2). No future §425.16 motion may re-
25 bundle the acts alleged in this cause of action with non-exempt acts. (Baral v. Schnitt
26 (2016) 1 Cal.5th 376, 384-385.)

27
28 XII. NATURE OF MONETARY RELIEF — GLOBAL §47(B) DISCLAIMER

29 35. GLOBAL DISCLAIMER OF DERIVATIVE TORT DAMAGES. No cause of action
30 pleaded in this complaint seeks compensatory tort damages for litigation communi-
31 cations, statements made in judicial proceedings, or any other conduct protected by

Civil Code §47(b) as construed in *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212, and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. All monetary relief sought in this complaint is one or more of the following:

- a. RESTITUTIONARY: the recovery, by means of the unwinding remedy for extrinsic fraud, of money or property that defendants obtained through a fraudulently procured judgment, which is expressly preserved by *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147, notwithstanding §47(b);
 - b. EQUITABLE ACCOUNTING AND TRACING: an equitable remedy to identify and trace the proceeds of the fraudulently procured judgment through the defendants' hands, which is not derivative tort damages and is not subject to §47(b);
 - c. CONSTRUCTIVE TRUST: imposition of a constructive trust under Civil Code §§2223 and 2224 on identifiable judgment proceeds held by defendants who are not entitled to retain them in equity; or
 - d. STATUTORY: restitution and injunctive relief under Bus. & Prof. Code §17203, predicated on violations of Insurance Code §790.03(h) and the FCSPR – which are independent statutory duties existing outside the scope of §47(b). (*Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 201; *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287, 304-305.)
36. The restitutionary recovery of proceeds of a fraudulently procured judgment travels with the equitable vacatur and is not foreclosed by §47(b). (*Cedars-Sinai Medical Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 11-12; *Rubenstein*, 81 Cal.App.4th at 1147.) To hold otherwise would render the equitable remedy hollow.

XIII. FIRST CAUSE OF ACTION — EQUITABLE VACATUR OF JUDGMENT FOR EXTRINSIC FRAUD

(Against All Defendants – Parties To and Privies of the Prior Judgment)

37. Plaintiff incorporates paragraphs 1-36 above.

38. EXTRINSIC FRAUD. The judgment entered in CGC-21-594102 on April 25, 2025, was procured through the extrinsic fraud described in paragraphs 17-27 above. Defendants prevented Plaintiff from presenting material evidence at trial by concealing the production history of the first-responder materials (the 911 audio, body-worn camera footage,

CAD logs, and supplemental SFPD report), and by making tribunal-directed misrepresentations about the provenance and receipt of those materials that were accepted by the Court and that resulted in seven consequential exclusionary and procedural rulings: (a) MIL No. 1 Denied and 911 CDs Excluded, Jan. 27, 2025, pp. 38:22-25, 41:3-11; (b) 911 Transcripts “Never Admitted,” Jan. 27, 2025, p. 39:18-24; (c) Continuance Denied, Feb. 18, 2025, p. 181; (d) §473 “Surprise” Relief Rejected, Feb. 18, 2025, p. 181:20-25; (e) Burden-Shift Imposed, Feb. 28, 2025, p. 293:1-3; (f) Supplemental Report Excluded, RT 7, p. 156:24-28.

39. **EXTRINSIC CHARACTER.** The fraud is extrinsic because it operated outside the trial itself – through pre-trial concealment and non-communicative acts (the file-transfer concealment and 893 days of silence) – and prevented Plaintiff from presenting material evidence at the trial that did occur. The Court’s reliance on defense counsel’s officer-of-the-court representations was articulated on the record: “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court.” (Hr’g Tr. Feb. 28, 2025, pp. 291:26-292:7.) (Cedars-Sinai Medical Ctr. v. Superior Court (1998) 18 Cal.4th 1, 11-12; Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471; In re Marriage of Modnick (1983) 33 Cal.3d 897, 905-907; Estate of Sanders (1985) 40 Cal.3d 607, 614-616.)

40. **MIL RULINGS ARE NOT PRECLUSIVE ADJUDICATIONS OF FRAUD.** As alleged in paragraphs 28-33 above, none of the four MIL orders cited in the tentative (RFJN Exs. E, F, G, H) “actually litigated” or “necessarily decided” whether defense counsel committed fraud on the court. Those rulings are Evidence Code §352 admissibility determinations; they are non-preclusive under Lucido v. Superior Court (1990) 51 Cal.3d 335, 341. The tentative’s treatment of those rulings as a “fully litigated” disposition of the fraud claim is a category error.

41. **NO ADEQUATE REMEDY AT LAW.** Plaintiff has no adequate remedy at law because the procedural avenues for direct review do not provide for the post-judgment discovery and concealment-based relief that equity affords. (Cedars-Sinai, 18 Cal.4th at 11-12; Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036.)

42. **§47(b) INAPPLICABLE.** The gravamen of this cause of action is the non-communicative conduct described in paragraph 20(d) (file-transfer concealment) and the structural suppression of evidence from the adversary process, not any privileged communicative act

made in a judicial proceeding. (Silberg v. Anderson (1990) 50 Cal.3d 205, 212-215; Kougasian, 118 Cal.App.4th at 1034-1036.) An independent action in equity to vacate a fraudulently procured judgment is not barred by §47(b). (Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147.)

43. WHEREFORE, as to the First Cause of Action, Plaintiff prays for: (a) an order vacating the judgment entered in CGC-21-594102 on April 25, 2025; (b) an order granting Plaintiff a new trial in CGC-21-594102; (c) preliminary and permanent injunctive relief enjoining enforcement of the judgment pending resolution of this action; and (d) such other equitable relief as the Court deems just.

XIV. SECOND CAUSE OF ACTION — RESTITUTION, EQUITABLE ACCOUNTING, AND CONSTRUCTIVE TRUST AS TO JUDGMENT PROCEEDS

(Against All Defendants Who Received or Disbursed Judgment Proceeds)

44. Plaintiff incorporates paragraphs 1-43 above.

45. PROCEEDS OF THE FRAUDULENTLY PROCURED JUDGMENT. As a direct result of the fraudulently procured judgment, defendants and their privies received and disbursed money or property – specifically, the proceeds of the judgment in CGC-21-594102 – to which they were not equitably entitled. The proceeds chain is as follows: (a) CSAA, as liability insurer, paid or authorized payment of amounts accruing to Defendant Abdelhalim’s benefit under the judgment; (b) PSA, Navaratnasingham, and Reyna received attorney’s fees and costs paid by CSAA in connection with the procurement of the judgment; (c) CS&K and Chambers received attorney’s fees paid by CSAA for services that included the concealment of the production history described herein; (d) Defendant Abdelhalim received the benefit of the judgment as the prevailing party. Plaintiff is entitled to restitution of that money or property, and to an equitable accounting and tracing thereof.

46. CONSTRUCTIVE TRUST. Each defendant who received proceeds of the fraudulently procured judgment holds those proceeds as a constructive trustee for Plaintiff under Civil Code §§2223 and 2224, as follows: (a) WRONGFUL ACT: the extrinsic fraud alleged in paragraphs 17-42 above; (b) IDENTIFIABLE PROPERTY: the judgment proceeds paid to or held by each defendant as described in paragraph 45 above; (c)

RIGHT OF COMPLAINING PARTY: Plaintiff’s equitable right, as the party against whom the fraudulently procured judgment was entered, to recover those proceeds as restitution. No defendant acquired good title to proceeds obtained through extrinsic fraud. (Civ. Code §2223 (“One who wrongfully detains a thing is an involuntary trustee thereof”); §2224 (“One who gains a thing by fraud ... is, unless he has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it”).)

47. EXPRESS §47(b) DISCLAIMER. The relief sought under this cause of action is restitutionary and equitable – specifically, the recovery of the proceeds of a fraudulently procured judgment through the constructive-trust and equitable-accounting remedies preserved by *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147, and *Cedars-Sinai Medical Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 11-12. Plaintiff expressly disclaims any recovery that would constitute derivative tort damages for litigation communications within Civil Code §47(b) as construed in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. The restitutionary and constructive-trust recovery sought here is not derivative tort damages; it is an unwinding remedy that travels with the equitable vacatur.

48. WHEREFORE, as to the Second Cause of Action, Plaintiff prays for: (a) restitution of all proceeds of the judgment in CGC-21-594102 received by any defendant; (b) imposition of a constructive trust on those proceeds; (c) an equitable accounting and tracing of the judgment proceeds through each defendant’s hands; and (d) prejudgment interest where allowed by law.

XV. THIRD CAUSE OF ACTION — UNFAIR COMPETITION (BUS. & PROF. CODE §17200 ET SEQ.)

(Against CSAA Insurance Exchange, Chambers, and Carbone, Smith & Koyama as Claims Agents; §425.17(c) Exempt)

49. Plaintiff incorporates paragraphs 1-48 above.

50. CLAIMS-AGENT STATUS. Defendants CSAA, Chambers, and CS&K (collectively, the “Insurance Defendants”) are claims agents within the meaning of 10 C.C.R. §2695.2(d) and owed Plaintiff and the public the statutory duties prescribed by Insurance Code

§790.03(h) and the Fair Claims Settlement Practices Regulations, 10 C.C.R. §§2695.1 et seq. Those duties exist independently of any litigation-privileged communication. (Royal Surplus Lines Ins. Co. v. Ranger Ins. Co. (2002) 100 Cal.App.4th 193, 201; Moradi-Shalal v. Fireman's Fund Ins. Cos. (1988) 46 Cal.3d 287, 304-305.)

51. UNLAWFUL PRACTICES PREDICATED ON INS. CODE §790.03(h) AND FCSPR.

The Insurance Defendants engaged in unlawful business practices within the meaning of Bus. & Prof. Code §17200 by violating Insurance Code §790.03(h) and the FCSPR, including: (a) misrepresenting pertinent facts and policy provisions in connection with the claim, in violation of 10 C.C.R. §2695.4; (b) failing to adopt and implement reasonable standards for the prompt investigation and processing of claims, in violation of 10 C.C.R. §2695.5; (c) compelling Plaintiff to institute litigation to recover amounts due under the policy by offering substantially less than amounts ultimately recovered or recoverable, in violation of Ins. Code §790.03(h)(6); (d) failing to maintain claim file documentation as required by 10 C.C.R. §2695.3; and (e) engaging in claims-handling and litigation conduct in furtherance of those statutory violations. Each predicate FCSPR violation is enumerated in Plaintiff's Supplemental Request for Judicial Notice filed May 7, 2026 (folder 14 of the May 12 package), which is incorporated herein by reference.

52. UNFAIR PRACTICES (CEL-TECH TETHERING). The Insurance Defendants also engaged in unfair business practices within the meaning of Bus. & Prof. Code §17200 by engaging in conduct that violates the policy or spirit of Insurance Code §790.03(h) and the FCSPR, constitutes an incipient violation of those statutes, or threatens competition in a manner that is proscribed by those statutes. (Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 186-187.)

53. STANDING (KWIKSET). Plaintiff lost money or property as a result of the Insurance Defendants' unlawful and unfair business practices, as follows: (a) Plaintiff was compelled to expend litigation costs and personal resources in prosecuting CGC-21-594102 that would not have been necessary had CSAA conducted a prompt and fair investigation and settled in good faith; (b) Plaintiff received less in settlement or judgment than he was entitled to recover as a result of the concealment of the first-responder materials described herein; and (c) Plaintiff suffered direct economic harm from the underpayment of Claim No. 1004-09-1054. (Kwikset Corp. v. Superior Court (2011) 51

Cal.4th 310, 323.)

54. LIKELIHOOD OF RECURRENCE / CONTINUING CONDUCT. On information and belief, the Insurance Defendants continue to engage in the same patterns of claims-handling and litigation conduct described herein with respect to other claimants in California. CSAA's institutional pattern of issuing denial letters without meaningful investigation (as evidenced by the February 25, 2021 "concluded investigation" denial just 21 days after the incident), and of using panel counsel to conceal production histories from trial courts and claimants, is a continuing business practice that is reasonably likely to recur absent injunctive relief. (*Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440, 465.)

55. STATUTORY EXEMPTION FROM §425.16. Each act alleged in this cause of action arises in connection with the sale, delivery, and adjustment of insurance products and services by CSAA to Plaintiff, a consumer, and satisfies each element of the §425.17(c) exemption as pleaded in paragraph 34 above. This cause of action is therefore exempted from CCP §425.16 by CCP §425.17(c)(1) and (c)(2). (*Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 21-22.)

56. EXPRESS §47(b) DISCLAIMER. The relief sought under this cause of action is statutory restitution and injunctive relief under Bus. & Prof. Code §17203, predicated on violations of independent statutory duties under Insurance Code §790.03(h) and the FCSPPR. These statutory duties exist outside the scope of Civil Code §47(b). Plaintiff expressly disclaims any recovery that would constitute derivative tort damages for litigation communications within §47(b). (*Royal Surplus Lines*, 100 Cal.App.4th at 201.)

57. WHEREFORE, as to the Third Cause of Action, Plaintiff prays for: (a) restitution and disgorgement of all sums obtained by the Insurance Defendants by means of the predicate FCSPPR and Insurance Code §790.03(h) violations; and (b) injunctive relief under Bus. & Prof. Code §17203 enjoining the Insurance Defendants from continuing the unlawful and unfair business practices described herein.

XVI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

- 1 1. As to the First Cause of Action: (a) vacating the judgment entered in CGC-21-594102
2 on April 25, 2025, for extrinsic fraud; (b) granting Plaintiff a new trial in CGC-21-
3 594102; (c) preliminary and permanent injunctive relief enjoining enforcement of the
4 judgment pending resolution of this action; and (d) such other and further equitable
5 relief as the Court deems just;
- 6 2. As to the Second Cause of Action: (a) restitution of all judgment proceeds received
7 by any defendant; (b) imposition of a constructive trust on those proceeds; (c) equi-
8 table accounting and tracing of judgment proceeds through each defendant's hands;
9 and (d) prejudgment interest where allowed by law; all relief under this cause being
10 restitutionary and equitable and not derivative tort damages within Civil Code §47(b);
- 11 3. As to the Third Cause of Action: (a) restitution and disgorgement under Bus. &
12 Prof. Code §17203 of all sums obtained by the Insurance Defendants through the predi-
13 cate statutory violations; and (b) injunctive relief under §17203 enjoining the Insurance
14 Defendants from continuing the unlawful and unfair practices described herein;
- 15 4. Costs of suit; and
- 16 5. Such other and further relief as the Court deems just and proper.

17 XVII. CURE CROSSWALK

18 The following table maps each pleading-level deficiency identified in the Department 301 Line
19 8.1 tentative to the paragraph(s) of this PTAC that cure it and the controlling authority,
20 pursuant to *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871-73.
21

Tentative Defect	Curative PTAC Paragraph(s)	Controlling Authority
Fraud framed as “intrinsic” because issues “were fully litigated” via MIL orders (RFJN Exs. E-H)	Paragraphs 17-27 (three concrete concealment categories with post-trial discovery dates, production history, MIL predicate, diligence); paragraphs 28-33 (MIL rulings are §352 admissibility orders, not adjudications of fraud; issue preclusion does not attach)	Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471; Modnick (1983) 33 Cal.3d 897, 905-907; Estate of Beard (1999) 71 Cal.App.4th 753, 776-77; Lucido v. Superior Court (1990) 51 Cal.3d 335, 341
§47(b) bars “ancillary monetary relief” as derivative tort damages (Silberg / Rusheen)	Paragraphs 35-36 (global §47(b) disclaimer; monetary relief is restitution-ary/equitable/statutory only); paragraph 47 (§47(b) disclaimer in Second Cause); paragraph 56 (§47(b) disclaimer in Third Cause)	Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147; Cedars-Sinai (1998) 18 Cal.4th 1, 11-12; Kougasian (2004) 118 Cal.App.4th 1028, 1034-1036
§425.17(c) / FCSPR exemption not pleaded with sufficient particularity (supplemental brief excluded)	Paragraph 34 (§425.17(c) element-by-element); paragraphs 50-56 (Third Cause with Kwikset standing, Cel-Tech unfair tether, §17203 injunction prerequisite, per-count §47(b) disclaimer)	Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 21-22; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 323
Olivera v. Grace elements (meritorious case, excuse, diligence) not pleaded	Paragraphs 24-27 (all three Olivera elements pleaded with specificity)	Olivera v. Grace (1942) 19 Cal.2d 570, 575-576

Curative PTAC		
Tentative Defect	Paragraph(s)	Controlling Authority
Lazar particularity for fraud not pleaded	Paragraphs 20(a)-(d) (speaker, authority, recipient, date, content, means, discovery request, trial issue for each concealment category)	Lazar v. Superior Court (1996) 12 Cal.4th 631, 645

1

I, FRANCISCUS DYLAN ROSARIO, am the Plaintiff in the above-entitled action. I have read the foregoing PROPOSED THIRD AMENDED COMPLAINT and know the contents thereof. The same is true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on May 11, 2026, at Rohnert Park, California.

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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